

Law of Torts including Motor Vehicle Accidents and Consumer Protection Laws

LL.B. Semester I – Paper IV

Detailed Topic-wise Study Notes

Units I–V — General Principles, Defences & Strict/Absolute Liability, Specific Torts, Defamation/Negligence/Remedies,
and Consumer Protection Law

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Unit-I: Nature of Tort and General Principles of Liability

Meaning, Definition and Nature of Tort

The word 'tort' is derived from the Latin term *tortum*, meaning 'twisted' or 'crooked,' and in law denotes conduct that is twisted or wrongful as opposed to straight or lawful conduct. A tort is a civil wrong, other than a mere breach of contract or breach of trust, for which the remedy is an action for unliquidated damages.

Salmond defines a tort as a civil wrong for which the remedy is a common law action for unliquidated damages, and which is not exclusively the breach of a contract, the breach of a trust, or the breach of other merely equitable obligation. Winfield defines tortious liability as arising from the breach of a duty primarily fixed by law, such duty being towards persons generally, and its breach being redressible by an action for unliquidated damages.

Tort law is largely uncodified in India (unlike contract or crime), and is based substantially on English common law principles as adapted by Indian courts to local conditions, justice, equity and good conscience.

Elements/Essentials of a Tort

For an act or omission to constitute a tort, three essential elements must generally be present.

- Wrongful act or omission by the defendant - the defendant must have done something which he was not expected to do, or omitted to do something which he was expected to do.
- Legal damage - the wrongful act must result in legal damage (*injuria*) to the plaintiff, i.e., an infringement of a legal right, and not merely factual loss.
- Legal remedy - the wrong must be one for which the appropriate remedy is an action for unliquidated damages (damages not pre-fixed by agreement, left to the discretion of the court based on facts of the case).

Development of the Law of Torts in England and India

In England, tort law developed through the common law writ system, initially through the writs of Trespass (for direct and forcible injuries) and Trespass on the Case (for indirect or consequential injuries), gradually expanding through judicial precedent into the modern law of negligence, nuisance, defamation and other torts.

In India, the law of torts is a relatively recent import through British colonial administration; Indian courts have generally applied English common law principles, subject to modification by Indian legislation, judicial precedent, and considerations of justice, equity and good conscience appropriate to Indian conditions. The Supreme Court has, in several landmark cases (e.g., in evolving the rule of absolute liability in *M.C. Mehta v. Union of India*), consciously departed from English precedent to develop indigenous principles suited to Indian socio-economic conditions.

Wrongful Act and Legal Damage: *Damnum Sine Injuria* and *Injuria Sine Damno*

'*Injuria*' means infringement of a legal right, and '*damnum*' means substantial harm, loss or damage in terms of money, comfort, health, etc. The interplay of these two Latin maxims determines actionability in tort law.

- *Damnum sine injuria* - damage without infringement of a legal right; here, even though the plaintiff suffers actual loss or harm, no action lies because no legal right has been violated (e.g., lawful competition in trade causing loss to a rival trader, as in *Gloucester Grammar School case*, or the exercise of one's own legal right even though it causes loss to another).
- *Injuria sine damno* - infringement of a legal right without actual damage or loss; here, an action lies even though the plaintiff has suffered no actual harm, because every injury to a legal right is actionable *per se* (e.g., *Ashby v. White*, where a qualified voter was wrongfully prevented from voting, though his preferred candidate won regardless; the tort was complete upon infringement of his legal right to vote).

Tort Distinguished from Crime and Breach of Contract

A tort must be distinguished from these two related but distinct categories of legal wrongs.

- Tort vs. Crime - a tort is a private wrong, primarily redressed by the injured party through a civil action for damages, whereas a crime is a public wrong, prosecuted by the State with the object of punishment; the same act (e.g., assault, defamation) may sometimes give rise to both civil and criminal liability. Tort proceedings aim at compensating the victim; criminal proceedings aim at punishing the offender and protecting society.
- Tort vs. Breach of Contract - in a tort, the duty violated is one fixed by law and owed to persons generally (in rem); in breach of contract, the duty is fixed by the agreement of the parties and owed only to the other contracting party (in personam). Damages in contract are usually restricted to what was in the contemplation of the parties at the time of contracting, whereas damages in tort may extend more broadly to all direct and foreseeable consequences of the wrong. Privity of contract is not required for a tort action, but is essential to a contract action.

General Principles of Liability in Torts

Liability in tort may arise on differing bases, and understanding these bases is central to the subject.

- Fault liability - the traditional and still dominant basis, under which liability depends on some blameworthy conduct (intention, negligence or recklessness) on the part of the defendant.
- Wrongful intent - certain torts (e.g., assault, battery, deceit, malicious prosecution) require proof that the defendant acted with a particular intention or state of mind directed at causing the harm.
- Malice - used in two senses in tort law: malice in fact (express malice, i.e., an actual evil motive) and malice in law (implied malice, i.e., doing a wrongful act intentionally without just cause or excuse, irrespective of actual motive); generally, a lawful act does not become unlawful merely because it is done with a bad motive (*Mayor of Bradford v. Pickles*), except in specific torts such as malicious prosecution and malicious falsehood where malice is itself an ingredient.
- Negligence - the breach of a legal duty to take care, resulting in damage to the plaintiff, undertaken without wrongful intent but through carelessness (elaborated further in Unit IV).

Liability Without Fault and Statutory Liability

Alongside fault-based liability, tort law also recognises situations of liability without fault (no-fault liability), where a defendant is held liable irrespective of intention or negligence, because of the inherently hazardous nature of the activity undertaken, or because public policy so demands. The principal examples are the rule of strict liability in *Rylands v. Fletcher* and the rule of absolute liability evolved in *M.C. Mehta v. Union of India*, both discussed in Unit II, as well as vicarious liability of employers for torts of employees.

Statutory liability arises where a statute itself creates a civil right of action for breach of a statutory duty (e.g., certain provisions of the Motor Vehicles Act creating liability for motor accident claims, or the Consumer Protection Act creating liability for defective goods/deficient services), as distinct from liability arising purely from common law principles.

Parties to Proceedings in Tort

As a general rule, any person may sue and be sued in tort, but the law recognises certain exceptions and special rules regarding capacity.

- The State - may sue and be sued in tort, subject to the defence of sovereign immunity for acts done in the exercise of sovereign functions (see Unit II).
- Minors and persons of unsound mind - can generally sue and be sued in tort, though a minor's contributory negligence and capacity to form the requisite intent may be relevant considerations.
- Corporations - being juristic persons, can sue and be sued in tort, and are liable for torts committed by their agents/employees in the course of employment (vicarious liability).
- Husband and wife - historically, spouses could not sue each other in tort and a husband was liable for his wife's torts; these common law disabilities have been substantially abolished by statute in most jurisdictions, including India.
- Foreign sovereigns, diplomats, and certain public officials enjoy varying degrees of immunity from suit under international law and specific statutes.

Unit-II: General Defences, Vicarious Liability, and Strict/Absolute Liability

General Defences to an Action in Torts

Even where all the elements of a tort are established, a defendant may escape or reduce liability by pleading one of several recognised general defences.

- *Volenti non fit injuria* - no injury is done to one who consents; where the plaintiff voluntarily and with knowledge of the risk consents to the defendant's conduct, he cannot later complain of it (subject to the requirement that consent must be free and informed, and does not extend to negligence going beyond the agreed risk).
- *Plaintiff the wrongdoer* - a plaintiff cannot found a cause of action upon his own wrongful act (*ex turpi causa non oritur actio*); however, this defence is confined to situations where the plaintiff's unlawful conduct is directly connected with the harm suffered.
- *Inevitable accident* - an accident which could not have been avoided by any amount of reasonable care, caution and skill; if established, it negatives the fault element necessary for liability.
- *Act of God (vis major)* - an extraordinary occurrence of natural forces which no human foresight could reasonably anticipate or guard against; operates as a defence, particularly relevant to strict liability claims.
- *Private defence* - reasonable force used to protect one's person or property is not actionable, provided the force used is proportionate to the threat.
- *Necessity* - an act which would otherwise be tortious is excused if done to prevent a greater harm, provided the act is reasonable and proportionate.
- *Statutory authority* - where a statute authorises the doing of a particular act, or the commission of what would otherwise be a tort, no action lies for the doing of that act, provided it is done without negligence and strictly within the authority conferred.

Vicarious Liability

Vicarious liability refers to the liability of one person for the tort committed by another, arising out of a special relationship between them, most commonly the relationship of employer and employee (master and servant). The maxim *qui facit per alium facit per se* ('he who acts through another is deemed in law to do it himself') and *respondeat superior* ('let the principal answer') underlie this doctrine.

An employer is liable for torts committed by an employee acting in the course of employment, even without any personal fault on the part of the employer, on grounds of public policy (the employer benefits from the employee's work and is generally better placed to bear or insure against the risk, and can exercise control over the employee's conduct). The key test is whether the wrongful act was done within the course of employment - even an unauthorised or prohibited mode of doing an authorised act may still fall within the course of employment, whereas an independent 'frolic of his own' by the employee generally falls outside it.

Vicarious liability also extends, in appropriate circumstances, to principal and agent, and to partners for torts committed by a co-partner in the ordinary course of the firm's business.

Liability of the State for Torts and the Defence of Sovereign Immunity

The question of whether, and to what extent, the State can be held liable in tort for the acts of its servants has generated significant jurisprudence in India, given the continued (though eroded) relevance of the old common law distinction between sovereign and non-sovereign functions.

Under this distinction, the State was traditionally held not liable for torts committed by its servants in the exercise of sovereign functions (such as defence, maintenance of armed forces, and certain core administrative/judicial functions), while it could be held liable, like any private employer, for torts committed in the exercise of non-sovereign (commercial or welfare) functions (*Kasturi Lal Ralia Ram Jain v. State of Uttar Pradesh* applied this distinction to deny liability). Subsequent decisions (e.g., *N. Nagendra Rao & Co. v. State of Andhra Pradesh* and various compensation-for-custodial-violence cases such as *Nilabati Behera v. State of Orissa*) have substantially narrowed the scope of sovereign immunity,

particularly where fundamental rights are violated, evolving a parallel constitutional remedy in public law for compensation, independent of ordinary tort law.

Joint Liability and Liability of Joint Tortfeasors

Where two or more persons combine to commit a single tortious act, or where their independent wrongful acts combine to produce a single indivisible harm, they may be treated as joint tortfeasors, jointly and severally liable to the plaintiff for the entire damage.

The plaintiff may sue any one, some, or all of the joint tortfeasors, and recover the full amount of damages from any of them (subject to a rule against double recovery for the same harm); a tortfeasor who has paid more than his proportionate share may, in most modern jurisdictions (including under statutory reform in England and analogous principles applied in India), claim contribution from the other joint tortfeasors.

Rule of Strict Liability - Rylands v. Fletcher

The rule in *Rylands v. Fletcher* (1868) establishes that a person who, for his own purposes, brings on to his land and keeps there anything likely to do mischief if it escapes, must keep it in at his peril, and if it escapes, is prima facie liable for all the damage which is the natural consequence of the escape, even without proof of negligence.

Essential conditions: (i) the defendant must have brought something onto his land which was not naturally there; (ii) the thing must be of a dangerous nature, likely to cause mischief if it escapes; (iii) there must be an 'escape' of the thing from the defendant's land/control to a place outside it; and (iv) the use of the land must be a 'non-natural' use.

Recognised exceptions/defences to strict liability include: consent of the plaintiff, default of the plaintiff, act of a third party, act of God, statutory authority, and (in some formulations) common benefit.

Rule of Absolute Liability - M.C. Mehta v. Union of India

In *M.C. Mehta v. Union of India* (the Oleum Gas Leak case, 1987), arising from a leak of oleum gas from a factory in Delhi, the Supreme Court of India declined to apply the traditional rule in *Rylands v. Fletcher* with its numerous exceptions, and instead evolved a new and more stringent rule of absolute liability suited to a modern industrial society engaged in hazardous or inherently dangerous activities.

Under this rule, an enterprise engaged in a hazardous or inherently dangerous activity owes an absolute and non-delegable duty to the community to ensure that no harm results from that activity, and if harm does result, the enterprise is absolutely liable to compensate all those affected, without being entitled to plead any of the exceptions available under the *Rylands v. Fletcher* rule (such as act of a third party, plaintiff's own default, or act of God). The Court also held that the measure of compensation should be correlated to the magnitude and capacity of the enterprise, so as to have a deterrent effect. This principle was subsequently applied and reinforced in the aftermath of the Bhopal Gas Tragedy litigation and has since been incorporated into statutory schemes such as the Public Liability Insurance Act, 1991 and the National Green Tribunal Act, 2010.

Occupiers' Liability

An occupier of premises owes a duty of care towards persons who enter the premises, the standard of care traditionally varying according to the visitor's status - a higher duty is owed to an invitee (a person entering for a purpose in which the occupier has a material interest, such as a customer) or licensee (a person entering with the occupier's permission but for his own purposes) than to a trespasser, to whom only a duty not to wilfully or recklessly injure is traditionally owed, subject to modern trends (especially concerning child trespassers, under the 'allurement' doctrine) imposing a somewhat higher standard of humane conduct even towards trespassers.

Extinction of Liability

Tortious liability, once it has accrued, may come to an end or be barred in several ways.

- Waiver and Acquiescence - if the plaintiff, having a choice of alternative and inconsistent remedies, elects to pursue one, he is taken to have waived the other; acquiescence refers to standing by and allowing an infringement to continue without objection, which may in equity bar a later claim for relief.

- Release - a voluntary abandonment or giving up of a right of action by the person entitled to it, usually in exchange for consideration, which discharges the tortfeasor from liability.
- Accord and Satisfaction - an agreement (accord) between the parties to accept something in place of the right of action, followed by the actual performance (satisfaction) of that agreement, extinguishing the original cause of action.
- Death - under the old common law maxim *actio personalis moritur cum persona* ('a personal action dies with the person'), most tort actions abated on the death of either party; this harsh rule has been substantially modified by statute in India (e.g., under the Legal Representatives Suits Act, 1855 and the Fatal Accidents Act, 1855) and is discussed further in Unit IV in the context of death in relation to tort.

Unit-III: Specific Torts — Person, Immovable and Movable Property, and Motor Accident Liability

Assault

Assault is an act of the defendant which directly and intentionally causes the plaintiff reasonably to apprehend an immediate and unlawful application of force to his person; actual physical contact is not necessary - it is the apprehension of imminent harm that constitutes the wrong (e.g., pointing a loaded gun at someone, or raising a fist in a threatening manner within striking distance). Mere words, without some gesture or act indicating an ability and intention to carry out the threat, are traditionally insufficient to constitute assault, though modern authority increasingly recognises the significance of words accompanying conduct.

Battery

Battery is the intentional and direct application of physical force to another person without lawful justification; the least touching of another in anger or without lawful excuse can amount to battery. Assault and battery frequently occur together (an assault followed by the actual application of force becomes battery), but are analytically distinct torts - assault protects against the apprehension of contact, battery against the contact itself.

False Imprisonment

False imprisonment consists of the total restraint of the personal liberty of a person, without lawful justification, for however short a period of time. The restraint must be total (a partial obstruction, leaving some reasonable means of escape open, does not amount to false imprisonment), but need not involve actual physical confinement - submission to an asserted legal authority to detain, even without physical restraint, may suffice. The plaintiff need not be aware of the confinement at the time for a cause of action to arise, though awareness may affect the quantum of damages.

Malicious Prosecution

Malicious prosecution is the tort of instituting unsuccessful criminal (or, in limited circumstances, certain civil) proceedings against another maliciously and without reasonable and probable cause. To succeed, the plaintiff must prove: (i) prosecution by the defendant; (ii) termination of the proceedings in the plaintiff's favour; (iii) absence of reasonable and probable cause for the prosecution; (iv) malice on the part of the defendant (an improper motive other than a desire to bring a guilty person to justice); and (v) damage suffered as a result (damage to reputation, person, or property, including the costs of defending unfounded proceedings).

Nervous Shock

Nervous shock refers to a recognisable psychiatric illness or injury caused by the defendant's negligent or intentional conduct, as distinct from mere grief, sorrow, or fear unaccompanied by physical/psychiatric consequences (for which the law traditionally denies recovery). Courts have progressively recognised liability for nervous shock suffered not only by primary victims directly imperilled by the defendant's conduct, but also, subject to control mechanisms (proximity of relationship, proximity in time and space to the event, and means by which the shock was caused), for secondary victims who witness injury to a loved one.

Trespass to Land

Trespass to land is the direct and unjustifiable interference with the possession of land in the plaintiff's possession, whether by unlawful entry upon the land, remaining on it after lawful permission has been withdrawn, or placing/throwing any material object upon it. It is actionable per se (i.e., without proof of actual damage), since it protects the plaintiff's possessory right to exclude others.

Nuisance - Public and Private

Nuisance is an unlawful interference with a person's use or enjoyment of land, or of some right over or in connection with it.

- Private nuisance - an unlawful interference with a person's use or enjoyment of land, or some right over/in connection with it, actionable by the person whose enjoyment of land is substantially and unreasonably interfered with (e.g., excessive noise, smoke, smell, vibration affecting a neighbouring property).
- Public nuisance - an act or omission which materially affects the reasonable comfort and convenience of the general public or a class of the public (e.g., obstructing a public highway); ordinarily a crime, remediable by the State/public authorities, but a private individual may sue in tort if he can show he has suffered 'special damage' over and above that suffered by the public generally.
- Remedies for nuisance include damages, injunction (to restrain continuance of the nuisance), and abatement (the self-help remedy of removing the nuisance, exercisable with reasonable care and, generally, after notice).

Torts Relating to Movable Property

The law also protects interests in movable property (goods/chattels) through several related torts.

- Trespass to goods - direct and intentional (or negligent) interference with goods in the possession of another, such as unauthorised touching, moving, or damaging of the goods.
- Conversion - an act of dealing with goods in a manner inconsistent with the rights of the true owner, amounting to a denial of, or interference with, those rights, so serious that the defendant may justly be required to pay the full value of the goods (e.g., wrongfully selling, destroying, or refusing to return another's goods).
- Detinue - the wrongful detention of the plaintiff's goods, where the plaintiff seeks either the return of the specific goods or their value, together with damages for the detention.

Liability Arising Out of Motor Vehicle Accidents

Motor accident claims form a specialised and heavily litigated branch of tort law in India, governed primarily by Chapter X, XI and XII of the Motor Vehicles Act, 1988 (as amended), which provide a statutory scheme largely superseding ordinary common law tort remedies for road accident victims.

Key features of this statutory scheme include: compulsory third-party insurance for all motor vehicles; the establishment of Motor Accident Claims Tribunals (MACTs) with exclusive jurisdiction to adjudicate compensation claims arising from motor vehicle accidents (in place of ordinary civil suits); the principle of 'no-fault liability' for a limited fixed amount of interim compensation in cases of death or permanent disablement, payable without the claimant having to prove negligence (Section 140, and now analogous provisions); and full fault-based liability claims for a higher, individually assessed quantum of compensation based on principles of just compensation, taking into account loss of dependency, loss of income, medical expenses, pain and suffering, loss of consortium, and future prospects, as elaborated by the Supreme Court in cases such as *Sarla Verma v. Delhi Transport Corporation* and *National Insurance Co. Ltd. v. Pranay Sethi* (which standardised the methodology for computing future prospects and other heads of compensation).

Unit-IV: Defamation, Negligence, Business Torts and Remedies

Defamation

Defamation is the publication of a statement which tends to lower a person in the estimation of right-thinking members of society generally, or which tends to make them shun or avoid that person, or which exposes him to hatred, contempt or ridicule, or which injures his reputation in his office, trade or profession.

- Libel - defamation in some permanent and visible form (writing, print, pictures, effigies); actionable per se in most common law jurisdictions, without proof of actual damage.
- Slander - defamation in a transient form (spoken words or gestures); generally actionable only on proof of special damage, except in certain traditionally recognised categories (e.g., imputation of a criminal offence punishable with imprisonment, imputation of a contagious/loathsome disease, imputation affecting a person in his office/profession/trade, and imputation of unchastity to a woman), where slander is actionable per se.
- Essential ingredients: (i) the statement must be defamatory; (ii) it must refer to the plaintiff; and (iii) it must be published, i.e., communicated to at least one person other than the plaintiff.
- Defences to defamation include: justification/truth (a complete defence), fair comment on a matter of public interest, and privilege - either absolute privilege (e.g., statements made in the course of judicial or parliamentary proceedings, where no action lies irrespective of motive) or qualified privilege (e.g., statements made in discharge of a legal, social or moral duty, or in protection of a legitimate interest, defeasible if the plaintiff proves malice).

Negligence

Negligence, as an independent tort, consists of the breach of a legal duty to take care which results in damage to the plaintiff. To succeed in an action for negligence, the plaintiff must establish: (i) the existence of a duty of care owed by the defendant to the plaintiff; (ii) breach of that duty by the defendant falling below the standard of the reasonable man; and (iii) resulting damage, which is not too remote a consequence of the breach.

The existence of a duty of care is tested, following *Donoghue v. Stevenson* (the 'neighbour principle'), by asking whether the defendant ought reasonably to have had the plaintiff in contemplation as being so closely and directly affected by his act that he ought reasonably to have him in mind when directing his conduct. Breach is assessed objectively (the standard of the ordinary reasonable, prudent person in the defendant's position), often applying the 'Bolam test' for professionals and the calculus of risk (probability of harm, gravity of harm, cost/practicability of precautions, and social utility of the defendant's conduct) more generally. Contributory negligence of the plaintiff, where established, results in an apportionment of damages rather than a complete bar to recovery under most modern statutory schemes.

Torts Against Business Relations - Injurious Falsehood and Negligent Misstatement

Injurious falsehood (also called malicious falsehood, slander of title, or trade libel) consists of a false statement made maliciously about the plaintiff's goods, business or property, causing him special damage (e.g., falsely and maliciously claiming that the plaintiff's goods are counterfeit, or that the plaintiff has ceased trading).

Negligent misstatement is a tort recognised following *Hedley Byrne & Co. Ltd. v. Heller & Partners Ltd.*, under which a person who makes a statement (particularly of a professional or expert nature) owes a duty of care to a person who reasonably and foreseeably relies on that statement to his detriment, where there exists a 'special relationship' of proximity between the parties, even in the absence of a contractual relationship.

Passing Off

Passing off is a tort designed to protect the goodwill attached to a trader's goods, business or services from misrepresentation by another trader, calculated to injure the business or goodwill of the first trader, and which causes (or is likely to cause) damage to that goodwill. The classic formulation requires proof of the 'classic trinity': (i) goodwill or reputation attached to the plaintiff's goods/services; (ii) a misrepresentation by the defendant leading (or likely to lead) the public to believe that the defendant's goods/services are those of the plaintiff; and (iii) damage suffered (or likely to be suffered) by the plaintiff as a result. Passing off is closely related to, but distinct from, statutory trademark infringement.

Conspiracy

The tort of conspiracy consists of an agreement between two or more persons to do an unlawful act, or to do a lawful act by unlawful means, resulting in damage to the plaintiff. Two forms are generally recognised: 'simple conspiracy'

(combination to injure the plaintiff, actionable even where the means used are lawful, provided the predominant purpose is to injure the plaintiff rather than to protect the legitimate interests of the conspirators) and 'unlawful means conspiracy' (combination using unlawful means to cause damage, actionable even without a predominant intent to injure).

Torts Affecting Family Relations

Traditional tort law recognised a cluster of torts protecting family relationships, including loss of consortium (a claim by a spouse for the loss of the companionship, affection and services of the other spouse due to the defendant's tortious injury to that spouse) and, historically, actions for enticement or harbouring of a spouse or child. Many of these actions have been substantially curtailed, abolished, or subsumed within statutory family law remedies in modern legal systems, including India, though loss of consortium continues to be recognised as a head of damages in appropriate personal injury and fatal accident claims.

Remedies - Judicial and Extra-Judicial

Remedies for tortious wrongs are classified into judicial remedies (obtained through court proceedings) and extra-judicial remedies (self-help remedies exercisable without recourse to court, within defined legal limits).

- Judicial remedies - primarily damages (compensation in money) and injunction (an order restraining the continuance or repetition of a wrongful act, or in mandatory form, compelling the undoing of a wrongful state of affairs); also specific restitution of property in torts such as detainee.
- Extra-judicial remedies - self-help remedies such as re-entry on land, re-capture of goods, abatement of nuisance, and distress damage feasant, each exercisable only with reasonable force and, generally, after due notice, and subject to strict limits to prevent abuse.

Damages - Kinds, Assessment and Remoteness of Damage

Damages are the principal remedy in tort law, and are classified in several overlapping ways.

- Nominal damages - a small sum awarded where a legal right has been infringed but no substantial loss has resulted (*injuria sine damno* cases).
- Substantial/compensatory damages - awarded to compensate the plaintiff for the actual loss suffered, aiming to restore him, so far as money can, to the position he would have been in had the tort not been committed (*restitutio in integrum*).
- Exemplary/punitive damages - awarded, in exceptional cases (such as oppressive or arbitrary conduct by government servants, or where the defendant's conduct was calculated to make a profit exceeding the compensation payable), not merely to compensate but to punish the defendant and deter similar conduct.
- Assessment of damages involves considerations such as pecuniary loss (special and general/future), non-pecuniary loss (pain, suffering, loss of amenity), and, in fatal accident cases, loss of dependency.
- Remoteness of damage - a defendant is not liable for all consequences of his tortious act without limit; liability is confined to damage that is not too remote, tested (following *The Wagon Mound*) by asking whether the kind of damage suffered was a reasonably foreseeable consequence of the defendant's wrongful act, rather than the older 'direct consequence' test (*Re Polemis*).

Injunctions

An injunction is a judicial order restraining a person from doing (prohibitory injunction) or, in appropriate cases, compelling a person to do (mandatory injunction) a particular act. Injunctions may be temporary/interlocutory (granted pending final disposal of the suit, to preserve the status quo) or permanent/perpetual (granted at the conclusion of the trial, as final relief); they are equitable remedies, granted at the discretion of the court, and are particularly important in torts such as nuisance, trespass, and passing off, where damages alone may not adequately protect the plaintiff's continuing interest.

Death in Relation to Tort - *Actio Personalis Moritur Cum Persona*

The old common law maxim *actio personalis moritur cum persona* means that a personal right of action dies with the person - traditionally, if either the tortfeasor or the injured party died, the cause of action in tort abated (could no longer be pursued or continued), particularly for torts affecting personal reputation or bodily integrity.

This rule has been substantially modified by statute. In India, the Legal Representatives Suits Act, 1855 allows the legal representatives of a deceased person to sue for, and recover damages for, wrongs causing pecuniary loss to the deceased's estate committed within one year before death. The Fatal Accidents Act, 1855 creates an independent statutory cause of action in favour of specified dependants (spouse, parent, child) of a person whose death has been caused by the wrongful act, neglect, or default of another, to claim compensation for the pecuniary loss resulting from the death - this is distinct from, and additional to, any cause of action the deceased might have had, and today operates alongside the specialised statutory compensation schemes under the Motor Vehicles Act for road accident deaths.

Unit-V: Consumer Protection Law

Common Law and the Consumer; Duty to Take Care and Consumerism

Before the enactment of dedicated consumer protection legislation, a consumer's remedies against a defective product or deficient service lay principally in the common law of contract (privity of contract restricting claims to the immediate seller) and tort (particularly the tort of negligence, following *Donoghue v. Stevenson*, which for the first time allowed a consumer to sue a manufacturer directly in the absence of any contractual relationship, where the manufacturer owed a duty to take reasonable care in the manufacture of products likely to reach the consumer without intermediate examination).

'Consumerism' refers to the organised social movement seeking to protect the rights and interests of consumers against exploitative, unfair, deceptive or unsafe practices by producers, traders and service providers, and to promote consumer awareness, education and collective bargaining power. The growth of consumerism, both internationally (e.g., the UN Guidelines for Consumer Protection, 1985) and in India, provided the impetus for dedicated consumer protection legislation going beyond the limitations of ordinary contract and tort remedies.

Salient Features of the Consumer Protection Act, 1986 and the Consumer Protection Act, 2019

The Consumer Protection Act, 1986 was India's first comprehensive consumer protection statute, establishing a three-tier quasi-judicial redressal machinery (District Forum, State Commission, National Commission) offering a simple, speedy and inexpensive remedy to consumers, without the need for court fees or formal pleadings of a civil suit.

- The Consumer Protection Act, 2019 (which repealed and replaced the 1986 Act) substantially modernised and strengthened the framework, notably by: enlarging the definition of 'consumer' to expressly cover e-commerce and offline transactions; establishing the Central Consumer Protection Authority (CCPA) as a dedicated regulatory body to promote, protect and enforce consumer rights as a class; introducing the concept of product liability as an independent basis of claim; providing for mediation as an alternative dispute resolution mechanism annexed to the consumer commissions; enhancing pecuniary jurisdiction of the three-tier commissions; permitting e-filing of complaints and complaints from the place of residence/work of the consumer (not just the seller's location); and introducing stringent penalties for misleading advertisements and for manufacturers/endorsers of such advertisements.

Definition of Consumer and Rights of Consumers

Under the 2019 Act, a 'consumer' is a person who buys goods or hires/avails services for consideration (paid, promised, partly paid/promised, or under a deferred payment system), and includes any user of such goods or beneficiary of such services with the buyer's approval, but excludes a person who obtains goods/services for resale or for a commercial purpose (with an exception carved out for goods/services used exclusively for the purpose of earning livelihood through self-employment).

- Rights of consumers recognised under the Act include: the right to be protected against the marketing of goods and services which are hazardous to life and property; the right to be informed of the quality, quantity, potency, purity, standard and price of goods/services; the right to be assured access to a variety of goods/services at competitive prices; the right to be heard and to be assured that the consumer's interests will receive due consideration at appropriate forums; the right to seek redressal against unfair or restrictive trade practices; and the right to consumer education.

Defects in Goods and Deficiency in Services; Restrictive and Unfair Trade Practices

A 'defect' means any fault, imperfection or shortcoming in the quality, quantity, potency, purity or standard which is required to be maintained by or under any law, or as claimed by the trader in relation to any goods. 'Deficiency' means any fault, imperfection, shortcoming or inadequacy in the quality, nature and manner of performance of a service (and, under the 2019 Act, expressly includes any act of negligence or omission by a service provider that causes loss or injury, and deliberate withholding of relevant information regarding safety risks).

An 'unfair trade practice' includes practices such as false representation of goods/services, misleading advertisements, bargain-price offers not intended to be honoured, and hoarding/black-marketing. A 'restrictive trade practice' refers to a practice that tends to manipulate price or conditions of delivery, or restricts competition, to the detriment of consumers (e.g., unjustified requirement of a consumer to buy, hire or avail of goods/services as a condition precedent to buying, hiring or availing other goods/services).

Redressal Machinery: Consumer Protection Councils and the CCPA

The Act provides for a hierarchy of Consumer Protection Councils - at the Central, State and District levels - as advisory bodies to promote and protect the rights of consumers.

The Central Consumer Protection Authority (CCPA), a specialised regulatory body created for the first time under the 2019 Act, is empowered to: investigate violations of consumer rights and institute complaints/prosecutions; order recall of unsafe goods and withdrawal of dangerous services; order discontinuation of unfair trade practices and misleading advertisements; and impose penalties for false or misleading advertisements on both the manufacturer/trader and the endorser. Its composition includes a Chief Commissioner and other Commissioners appointed by the Central Government, supported by an Investigation Wing headed by a Director-General.

Product Liability

The 2019 Act introduces, for the first time in Indian consumer law, a distinct chapter on product liability, under which a 'product liability action' may be brought by a consumer against a product manufacturer, product seller, or product service provider, for any harm caused by a defective product. Liability may arise on grounds such as manufacturing defect, design defect, deviation from manufacturing specifications, failure to conform to an express warranty, or failure to provide adequate instructions/warnings of a danger involved in using the product - the Act specifies the conditions and defences applicable separately to manufacturers, sellers, and service providers.

Consumer Disputes Redressal Commissions: Jurisdiction and Powers

The 2019 Act establishes a three-tier adjudicatory structure - District Consumer Disputes Redressal Commission, State Consumer Disputes Redressal Commission, and National Consumer Disputes Redressal Commission - with pecuniary jurisdiction revised upward from the 1986 Act (District Commission: complaints where the value of goods/services paid as consideration does not exceed Rs. 1 crore; State Commission: above Rs. 1 crore up to Rs. 10 crore; National Commission: above Rs. 10 crore), alongside territorial jurisdiction based on the residence/place of work of the complainant (a significant liberalisation from the 1986 Act, which tied jurisdiction to the opposite party's location) and appellate jurisdiction of the State and National Commissions over orders of the tier below.

Procedure for Filing a Consumer Dispute, E-filing and Continuous Cause of Action

A complaint may be filed by the consumer, any registered voluntary consumer association, the Central or State Government, one or more consumers on behalf of a numerous class of consumers, or the legal heirs/representatives of a deceased consumer, without any court fee (for claims up to a specified value) and without the need for a lawyer.

The 2019 Act expressly enables e-filing of complaints and e-hearing through video conferencing, and, in the case of a continuing deficiency or unfair trade practice, recognises a 'continuous cause of action', which may permit a fresh limitation period to run so long as the deficiency/practice persists, rather than being confined strictly to the date of the original transaction.

Civil and Criminal Liability, ADR and Mediation, and Penalties for Misleading Advertisement

In addition to civil compensation ordered by the consumer commissions, the Act creates specific criminal liability for certain conduct - for example, manufacture, sale or storage for sale of adulterated or spurious goods causing injury or death is punishable with imprisonment and fine under the Act, escalating in severity where the adulteration/spurious nature results in grievous hurt or death.

The Act introduces mediation as a structured, court-annexed alternative dispute resolution mechanism: where a consumer commission is of the opinion that a dispute could be settled through mediation, and both parties agree, the matter is referred to a mediation cell attached to the commission, staffed by empanelled mediators appointed in accordance with the Act's provisions on their qualification, appointment, duties, and the procedure for settlement, with the aim of achieving a speedier and more amicable resolution than adjudication.

Penalties for misleading advertisement can be imposed by the CCPA on both the manufacturer/trader and, notably, the endorser of a misleading advertisement (subject to certain due-diligence defences for endorsers), reflecting a significant expansion of accountability beyond the traditional trader-consumer relationship to cover the modern advertising and celebrity-endorsement ecosystem.